

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

9. DEBRA STANLEY V. ROBERT STANLEY

PFL20210202

On Marh 18, 2026, Respondent filed a Request for Order seeking visitation and spousal support orders. He filed his Income and Expense Declaration on March 17th. Both documents were served on Petitioner on March 17th however Respondent did not serve the requisite blank FL-320 or the Notice of Tentative Ruling. The Department of Child Support Services (DCSS) was not served.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent requests a modification of the parenting time orders with a summer vacation schedule, holiday schedule and soccer season schedule. He further asks the court to terminate spousal support.

The parties attended Child Custody Recommending Counseling (CCRC) on March 5, 2026 and were unable to reach any agreements. A report with recommendations was prepared and mailed to the parties on April 17, 2026.

Given that both parties attended and participated in CCRC, and given that Respondent is not making a child support request, the court does find good cause to proceed with the matter on its merits despite the defect in service.

After reviewing the filings as outlined above the court does find the recommendations contained in the April 17, 2026 CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court.

Regarding the request to terminate spousal support, the court maintains broad discretion in determining whether a support award is warranted and if so, the amount and duration thereof. *In re Marriage of McLain*, 7 Cal. App. 5th 262, 269 (2017). While the factors listed in Family Code section 4320 may be considered by the court, an award for *temporary* support is generally unrestricted by any statutory authority. See *Marriage of Tong & Samson*, 197 Cal. App. 4th 23, 29 (2011). That said, Section 4320 does include consideration of the duration of the marriage and an award of support for a “reasonable time” for the supported party to become self-supporting.

Here, the marriage was less than three years in duration and support was originally ordered in April of 2021, approximately five years ago. Given that at this point support has been ongoing almost twice as long as the marriage itself, the court does find that Petitioner has had a sufficiently reasonable amount of time to become self-supporting. Accordingly, the request to terminate spousal support is granted.

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Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #9: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE THE COURT DOES FIND THE RECOMMENDATIONS CONTAINED IN THE APRIL 17, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. THE REQUEST TO TERMINATE SPOUSAL SUPPORT IS GRANTED.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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10. KIMBERLY WALTS V. KEVIN WALTS

PFL20170517

On February 13, 2026, Respondent filed a Request for Order (RFO) seeking spousal support orders. He filed his Income and Expense Declaration concurrently therewith. All required documents, with the exception of the Notice of Tentative Ruling, were personally served on Petitioner on March 6th.

Petitioner has not filed a Responsive Declaration to Request for Order.

This is a post-judgment request for modification of permanent spousal support orders. As such, the court is required to take evidence on, and address, the Family Code § 4320 factors. The parties are ordered to appear to select dates for an evidentiary hearing.

TENTATIVE RULING #10: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO SELECT DATES FOR AN EVIDENTIARY HEARING.